

CV-25-004154 GARRETTSTEINMAN, DANIEL PAUL vs SIERRA CLUB - a) Defendant's Motion Compel Further Responses to Special Interrogatories, Set One - HEARING REQUIRED; b) Defendant's Motion to Compel Further Production of Documents - HEARING REQUIRED; c) Defendant's Motion to Compel Further Responses to Form Interrogatories, Set Two - HEARING REQUIRED; d) Defendant's Motion to Compel Further Responses to Defendants' Requests for Admissions, Set One - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a-d) The Court has questions about the timeliness of the instant motions, which may adversely impact the Court's jurisdiction to hear them. Proof of service indicates Plaintiff's verified responses to each of the discovery requests were electronically served on 1-26-26, yet notice of the instant motions was not provided until 4-22-26, which exceeds the 45-day deadline provided in Code Civ. Proc. §§ 2030.300(c), 2031.310(c), and 2033.290(c). The Court finds no indication in the evidence that the parties agreed to extend the subject deadline and does not believe a stay was in effect. Even if served on February 27, 2026 as alleged by Defendant, the 45 days would have run. On March 17, 2026, the Court explicitly stated the due date for the motion to compel was April 15, 2026. Discussions between the parties do not appear to have extended this date but I may be mistaken or be unaware of other facts. If I were to reach the merits, I note that Plaintiff has expressly placed his mental health conditions at issue.

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